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Attorneys for Tyler James Robinson

IN THE FOURTH JUDICIAL DISTRICT COURT, PROVO DEPARTMENT
IN AND FOR THE COUNTY OF UTAH, STATE OF UTAH

STATE OF UTAH, Plaintiff, vs. TYLER JAMES ROBINSON, Defendant.	MOTION TO ORDER TRANSCRIPT AND TEMPORARILY CLASSIFY TRANSCRIPT AND AUDIO AS PRIVATE Case No. 251403576 Honorable Tony F. Graf, Jr.
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Defendant, Tyler James Robinson, by and through undersigned counsel hereby moves this Court to order the preparation of a transcript from the closed portion of the hearing on December 11, 2025. In addition, Mr. Robinson moves, pursuant to Utah Rule of Judicial Administration 4-202.04(3), to temporarily classify the audio recording and transcription from the closed portion of the hearing on December 11, 2025, as “private” under Utah Rule of Judicial Administration 4-202.02(4)(S).

Mr. Robinson’s Counsel has consulted with Counsel for the State and Media Counsel on this motion and concurrently filed order. The Utah County Attorney’s Office and Media Counsel have represented that they do not object to the motion and temporary classification.

DISCUSSION

I. This Court Should Order Preparation of a Transcript from the Closure Hearing.

This Court closed a portion of the hearing on December 11, 2025, addressing requested redactions of the transcript from the closed hearing on October 24, 2025. When all or part of a hearing is closed, the transcript and audio from this portion of the hearing are presumed to be private under Utah Rule of Judicial Administration 4-202.02(4)(S). Counsel is informed that the Court must issue an order authorizing the appointed court reporter to prepare the closure hearing transcript.

It is Mr. Robinson’s position that transcripts should be prepared of every proceeding in this death penalty case. Transcripts facilitate the maintenance of a complete and accurate record of the proceedings. Further, ordering transcripts as the case progresses avoids potential future delay in seeking appellate relief. *See* Utah R. App. P. 11(c) (noting the duty of the appellant to “include in the record a transcript of all evidence relevant” to issues raised). Finally, by allowing

transcripts to be prepared close in time to the closed proceeding, the Court and the parties are in a better position to address classification issues that may arise.

Given the serious nature of the case and the duty of counsel to ensure a complete and accurate record, it is reasonable and appropriate for this Court to order a transcript be prepared.

II. This Court Should Temporarily Classify the Transcript and Audio of the Closed Proceedings on December 11, 2025 as “Private.”

Mr. Robinson requests pursuant to Utah Rules of Judicial Administration 4-202.04 and 4-202.02(4)(S) that the transcript and audio from the closed portion of the December 11, 2025 hearing be temporarily classified as private. The temporary classification of “private” to the closure hearing transcript and audio is appropriate given the pendency of the Court’s ruling on the October 24, 2025 transcript/audio closure issue. Mr. Robinson requests that the temporary classification order allow the defense team, the prosecution team, and counsel for the media to receive a copy of the transcript in order to determine what redactions may be appropriate. Inclusion of media counsel in the order is appropriate in this instance based upon their participation in the closed portion of the closure hearing.

Based upon the Court’s anticipated ruling regarding closure of the October 24, 2025 hearing transcript and audio, redactions of the closure hearing transcript consistent with the Court’s ruling will likely be appropriate and Mr. Robinson intends to work with the Utah County Attorney’s Office and Media Counsel to this end.

However, this motion and proposed order are not intended to prevent any party, or Media Counsel, from asserting their respective positions and seeking judicial relief regarding the ultimate classification of the December 11, 2025 closure hearing transcript and audio. Likewise, the non-objection to this motion is not intended to create any presumptions for or against either party or the media in evaluating future, similar requests. Should the parties and Media Counsel

be unable to resolve any redaction issues, they may request a hearing consistent with Rule 4-202.04.

CONCLUSION

Based upon the foregoing, Mr. Robinson respectfully requests an order from the Court authorizing the preparation of a transcript from the closed portion of the hearing on December 11, 2025, and to temporarily classify the transcript and hearing audio as private in the Court record.

RESPECTFULLY SUBMITTED this 17th of December, 2025.

/s/ Kathryn N. Nester
Kathryn N. Nester

/s/Richard G. Novak
Richard G. Novak

/s/ Michael N. Burt
Michael N. Burt

/s/ Staci Visser
Staci Visser

Attorneys for Defendant, Tyler James Robinson

CERTIFICATE OF SERVICE

This is to certify that a true and correct copy of the foregoing was served via the Court's electronic filing system on the 17th day of December, 2025, which served all attorneys of record.

Further, undersigned certifies that a copy of this pleading was served by email on the same date upon counsel for the media entities previously identified as *Deseret News, et al.*, see Docket Entry 150, namely:

Jeffrey Hunt
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And by email upon on counsel for the media entities identified as *The Salt Lake Tribune, et al.*, see Docket Entry 164, namely:

C. Michael Judd
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/s/ Staci Visser
Staci Visser